



CHAPTER xx.

An Act to empower the mayor aldermen and citizens of the city of Coventry to construct and maintain waterworks and take water from the river Avon to extend the time for the purchase of lands needed for certain street works to alter the qualification of apprentices serving during the period of the present emergency in the Navy the Army or the Air Force for the freedom of the city and for other purposes.

[13th June 1940.]

WHEREAS the city of Coventry (hereinafter called "the city") is under the management and local government of the mayor aldermen and citizens of the city (in this Act called "the Corporation"):

And whereas the Corporation are the owners of the waterworks which supply water throughout the city and in a considerable area outside the city:

And whereas for purposes connected with the defence of the realm and the prosecution of the present war and otherwise many factories and works have recently been established or are in course of construction in the city and in the limits of the Corporation for the supply of water involving the immediate provision of additional supplies of water by the Corporation:

And whereas it would be impossible in any event to complete the construction of the first instalment of

2 & 3
Geo. 6.
c. lxxxviii.

2 & 3
Geo. 6.
c. 62.

the aqueducts and other works which the Corporation were authorised by the Coventry Corporation Act 1939 to carry out for the purpose of obtaining an additional supply of water from the river Severn in time to furnish the additional supplies of water required immediately for the said factories and works and moreover in consequence of the present war there are insuperable difficulties with regard to the immediate commencement of the said aqueducts and works and application was accordingly made to the Minister of Health under the Defence Regulations 1939 made in pursuance of the Emergency Powers (Defence) Act 1939 to enable the Corporation to construct waterworks and to take water from the river Avon and the said Minister has authorised the Corporation to construct waterworks for that purpose :

And whereas it may be necessary for the Corporation to continue to take water from the river Avon after the termination of the period of the emergency which was the occasion of the passing of the Emergency Powers (Defence) Act 1939 and it is accordingly expedient to authorise the Corporation to construct and maintain the waterworks authorised by this Act :

26 Geo. 5. &
1 Edw. 8.
c. cix.

And whereas the Corporation were authorised by the Coventry Corporation Act 1936 to construct certain street works but in consequence of the manifold duties cast upon the Corporation and their officers during the past year it has been impossible to proceed with the construction of the said works and it is expedient that the time limited by the said Act of 1936 for the compulsory purchase of lands for the purpose of the said street works be extended as provided by this Act :

17 & 18
Geo. 5.
c. xc.

And whereas it is expedient to amend the provisions of the Coventry Corporation Act 1927 with respect to the qualification for obtaining the freedom of the city in respect of apprentices serving in the Royal Navy His Majesty's Army or the Royal Air Force during the period of the said emergency and that the provisions contained in this Act with regard to that matter be enacted :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the following purposes:—

	£
(a) For and in connection with the construction of Work No. 3 authorised by this Act - - -	6,000
(b) For and in connection with the provision of new mains extensions of mains and other waterworks purposes - - - - -	5,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the Corporation be empowered to borrow money for those purposes as provided by this Act:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

23 & 24
Geo. 5.
c. 51.

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the county council of the administrative county of Warwick which plans sections and book of reference are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the *Coventry Corporation Act 1940.* Short title.

Incorporation of
Acts.

2. The following enactments (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts with the following exceptions and modification:—

8 & 9 Vict.
c. 18.

(a) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) are not incorporated with this Act;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section:

10 & 11
Vict. c. 17.

(2) The Waterworks Clauses Act 1847 except—

(a) the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44;

(b) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) section 83 (with respect to the yearly receipt and expenditure of the undertakers):

26 & 27
Vict. c. 93.

(3) The Waterworks Clauses Act 1863.

Interpre-
tation.

26 Geo. 5.
& 1 Edw. 8.
c. 49.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Act 1936 shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The city” means the city of Coventry;

“The Corporation” means the mayor aldermen and citizens of the city;

“The town clerk” means the town clerk of the city;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

9 & 10
Geo. 5.
c. 57.

“The water undertaking” means the water undertaking of the Corporation;

“The Act of 1900” “the Act of 1907” “the Act of 1911” “the Act of 1920” “the Act of 1927” “the Act of 1928” “the Act of 1936” and “the Act of 1939” mean respectively the Coventry Corporation Act 1900 the Coventry Corporation Act 1907 the Coventry Corporation Act 1911 the Coventry Corporation Act 1920 the Coventry Corporation Act 1927 the Coventry Corporation Act 1928 the Coventry Corporation Act 1936 and the Coventry Corporation Act 1939;

63 & 64 Vict.
c. cclxii.
7 Edw. 7. c. ci.
1 & 2 Geo. 5.
c. viii.
10 & 11 Geo. 5.
c. lxxxviii.
17 & 18 Geo. 5.
c. xc.
18 & 19 Geo. 5.
c. cx.

“The Minister” means the Minister of Health.

WATERWORKS.

4. Subject to the provisions of this Act the Corporation may enter upon take appropriate and use or acquire easements in all or any of the lands delineated on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works authorised by this Act and for other the purposes of the water undertaking.

Power to
take lands.

5. The powers granted by this Act for the compulsory purchase of lands and easements for the purposes of this Act shall cease after the expiration of one year from the passing of this Act.

Period
for com-
pulsory
purchase
of lands.

6.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the parish of Ryton-upon-Dunsmore in the rural district of Rugby in the county of Warwick in the lines and situations and according to the levels shown upon the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following works (namely):—

Power to
make
works.

Work No. 1 An intake on the left bank of the river Avon in the enclosure numbered 16 on

the 1/2500 Ordnance map (edition 1905) Warwick sheet XXVII.2 at a distance of 10.83 chains or thereabouts measured in an easterly direction from the building known as Ryton Mill;

Work No. 2 An aqueduct or line or lines of pipes commencing at the said intake (Work No. 1) and terminating at the treatment works and pumping station (Work No. 3) authorised by this Act;

Work No. 3 Treatment works and a pumping station in the said enclosure numbered 16;

Work No. 4 An aqueduct or line or lines of pipes commencing at the said treatment works and pumping station (Work No. 3) and terminating in the existing main of the Corporation in the Coventry-London road at a point approximately 54 chains measured in an easterly direction from Ryton Bridge;

Work No. 5 A waste water conduit commencing at the said treatment works and pumping station (Work No. 3) and terminating in the left bank of the river Avon at a distance of 1.74 chain or thereabouts measured in a westerly direction from Ryton Mill.

(2) In addition to the works hereinbefore described the Corporation may upon any lands for the time being belonging to them not being land held by them upon a charitable trust or in or over which they have or obtain easements make and maintain all such buildings tanks machinery electric cables roads tram-roads works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the said works or necessary for inspecting maintaining repairing cleansing managing working or using the same but nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to
deviate in
construc-
tion of
works.

7. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of deviation shown on

the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent. Provided that except for the purposes of crossing over a stream no part of the lines of pipes or conduits authorised by this Act shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

8.—(1) If the works authorised by this Act and shown on the deposited plans and sections are not completed within one year from the passing of this Act then subject to the provisions of subsection (2) of this section the powers granted by this Act for constructing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of works
and
enlarge-
ment of
works.

(2) The Corporation may extend enlarge alter reconstruct renew or remove any of the works and plant constructed under this Act and in the case of Works Nos. 2 and 4 authorised by this Act lay down additional lines of pipes as and when occasion may require.

9. Should any of the works authorised by this Act have been constructed or partially constructed before the passing of this Act under the authority of the Minister in pursuance of the Defence Regulations 1939 any such work shall be deemed on and after the passing of this Act or upon its completion after the passing of this Act to have been constructed under the powers of this Act and the provisions of this Act shall apply to any such work accordingly.

Works
constructed
under
authority
of Minister
of Health
to be
deemed to
have been
constructed
under this
Act.

10. The Corporation may abstract collect take use divert and appropriate for the purposes of their water-works the waters of the river Avon and its tributaries by means of the intake (Work No. 1) authorised by this Act. Provided that the Corporation shall not abstract collect impound take use divert or appropriate any greater quantity of water by means of the said intake than one million gallons in any one day of twenty-four hours.

Power to
take
waters.

As to
meters
gauges &c.

11.—(1) For the purpose of measuring the quantity of water abstracted collected diverted taken or used by the Corporation from the river Avon the Corporation shall maintain proper and suitable meters or gauges (including such automatic recorders as may be reasonably required) through or over which the quantity of water abstracted collected diverted or taken by the Corporation from the river Avon shall pass.

(2) The situations in which the said meters or gauges are fixed and the designs thereof and of any automatic recorders shall be agreed between the Corporation and the Minister of Agriculture and Fisheries and the said meters or gauges and automatic recorders and the records obtained by means thereof shall be open at all reasonable times to the inspection and examination of the River Severn Catchment Board the board of conservators of the River Severn Fishery District and all persons interested in the flow of the river Avon or their duly accredited representatives and such persons or representatives may if they so desire take copies of any such records and on or before the seventh day of every month the Corporation shall send to the said catchment board and board of conservators a statement of the quantity of water taken by the Corporation from the river Avon on every day of the preceding month and of the hours on every such day during which such water was taken.

(3) In case of any neglect on the part of the Corporation to maintain the said meters or gauges and automatic recorders or any of them in a state of efficiency or in case of any other neglect by or in consequence of which water shall be abstracted collected diverted or taken by the Corporation in contravention of the provisions of this and the preceding section the Corporation shall for every day on which such neglect occurs forfeit and pay to the said catchment board and board of conservators (either of whom may sue for and recover the same) such sums as shall not in the aggregate exceed ten pounds and shall in addition make compensation for any loss or injury sustained by any person injuriously affected thereby.

(4) If any difference arises between the Corporation and the Minister of Agriculture and Fisheries with respect to the situations or designs of the said meters gauges or automatic recorders or with respect to whether automatic recorders are required or between the Corporation on the one hand and the said catchment board or board of conservators or any person so interested as aforesaid on the other hand with respect to the use of the said meters gauges and automatic recorders or any of them or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 and the Arbitration Act 1934 shall apply to any such arbitration.

52 & 53
Vict. c. 49.
24 & 25
Geo. 5.
c. 14.

12.—(1) The intake (Work No. 1) authorised by this Act may be maintained by the Corporation until the aqueducts Works Nos. 9 10 11 12 16 and 18 authorised by the Act of 1939 shall have been completed and put into use or until such later date as the Minister may on the application of the Corporation approve and when the last-named works shall have been completed and put into use or upon such later date as aforesaid the Corporation shall discontinue and remove the said intake and shall cease to abstract collect take use divert and appropriate water from the river Avon and thereupon the obligations of the Corporation under the section of this Act of which the marginal note is "As to meters gauges &c." shall cease.

As to main-
tenance
and discon-
tinuance
of Work
No. 1.

(2) If any application shall be made by the Corporation to the Minister for his approval to the maintenance by the Corporation of the said intake authorised by this Act beyond the date of the completion and putting into use of the said aqueducts authorised by the Act of 1939 the Minister shall require the Corporation to publish notice of the application once in the London Gazette and once in each of two successive weeks in some newspaper or newspapers circulating in the county of Warwick Each such notice shall state the time (which shall not

be earlier than one month after the date of the last publication of the notice) and the method for bringing before the Minister any objections to or representations on the grant of such approval.

(3) The Minister shall consider any objections or representations which shall be duly brought before him with respect to any such application and may if he thinks fit direct an inquiry to be held in relation to the application and any person who shall have duly lodged any such objections or representations shall be entitled to be heard at the inquiry.

For
protection
of River
Severn
Catchment
Board.

13. Notwithstanding anything in this Act the following provisions for the protection of the River Severn Catchment Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

(1) (a) The Corporation before commencing to construct the intake (Work No. 1) and the waste water conduit (Work No. 5) by this Act authorised or either of those works shall submit to the board particulars thereof with plans sections and working drawings thereof for their reasonable approval. If the board do not within twenty-one days after the submission to them of any such particulars plans sections and drawings signify to the Corporation in writing their approval or disapproval thereof and their requirements in regard thereto they shall be deemed to have approved thereof;

(b) The said works shall not be executed otherwise than in accordance with such plans sections and drawings as may be approved by the board or if such approval be withheld as may be settled by arbitration as hereinafter in this section provided and shall be executed to the reasonable satisfaction of the board and under the superintendence of the engineer of the board if the engineer elect to superintend after receiving reasonable notice of the date when the work is to be commenced:

- (2) The Corporation shall at all reasonable times afford to the engineer of the board or his duly authorised representatives access to the said works for the purpose of inspection :
- (3) Forthwith after the discontinuance and removal of the said intake (Work No. 1) under the powers of the section of this Act of which the marginal note is "As to maintenance and discontinuance of Work No. 1" the Corporation shall to the reasonable satisfaction of the board restore the bank of the river Avon to the condition in which it was immediately before the construction of the said intake and make good any damage caused to the said bank by or in consequence of the removal of the said intake :
- (4) Any dispute or difference which may arise under this section between the board or their engineer and the Corporation (save as to the construction of this section) shall be determined by arbitration :
- (5) The provisions of this section shall be in addition to and not in derogation of any other provision of this Act enuring for the protection or benefit of the board.

14. The works to be constructed by the Corporation under the authority of this Act shall so long as the same may be maintained by the Corporation be deemed for all purposes to be part of the water undertaking:

Works to form part of water undertaking.

15. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the river Avon above the intake (Work No. 1) authorised by this Act with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be abstracted collected taken used diverted and appropriated by the Corporation.

Power to agree as to drainage of lands &c.

EXTENSION OF TIME FOR PURCHASE OF LANDS FOR
STREET WORKS.

Extension
of time for
compulsory
purchase
of lands
authorised
by Act
of 1936.

16. The period limited by section 8 (Period for compulsory purchase of lands) of the Act of 1936 for the compulsory purchase of the lands required for and in connection with the purposes of Street Works Nos. 1 to 11 inclusive authorised by section 13 (Power to construct works) of the Act of 1936 is hereby extended until the thirty-first day of December nineteen hundred and forty-five or until a date not later than five years from the termination of the present war whichever may be the later but on such later date the powers for such compulsory purchase shall cease except so far as such powers shall have been exercised.

FREEDOM OF THE CITY.

Amend-
ment of
Part XII
of Act
of 1927 for
purposes
of period
of present
emergency.

17. As from the twenty-fourth day of August nineteen hundred and thirty-nine until such day as His Majesty may by Order in Council declare to be the day on which the emergency which was the occasion of the passing of the Emergency Powers (Defence) Act 1939 came to an end Part XII (Freedom of the city) of the Act of 1927 shall be read and have effect and shall be deemed to have had effect as set forth in the schedule to this Act :

Provided that after such last-mentioned day the said Part XII as set forth in the said schedule shall have effect for the purpose of enabling an apprentice to comply with the provisions of the sections in the said schedule of which the marginal notes are respectively "Evidence to be produced by claimants" and "As to claims which cannot be submitted in due time."

FINANCIAL AND MISCELLANEOUS.

Power to
borrow.

18.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of that table and they shall pay off all moneys so

borrowed within the respective periods mentioned in the third column of the said table (namely):—

1	2	3
Purpose.	Amount.	Period for repayment.
(a) The construction of Work No. 3 authorised by this Act.	£6,000	Ten years from the date or dates of borrowing.
(b) The provision of new mains extensions of mains and other waterworks purposes.	£5,000	Thirty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of obtaining this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The periods set forth in the third column of the table contained in subsection (1) of this section are in relation to this Act the prescribed periods referred to in section 112 (Periods for repayment of principal moneys) of the Act of 1900.

19. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 it shall not be lawful to exercise the powers of borrowing conferred by this Act without such consent.

Saving for emergency restrictions on borrowing.

20. The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Applica-
tion of
provisions
of Public
Health
Act 1936.

Section 285. (Service of notices &c.);

Section 286. (Proof of resolutions &c.);

Section 304. (Judges and justices not to be disqualified by liability to rates);

Section 328. (Powers of Act to be cumulative).

Applica-
tion of
provisions
of Acts of
1907 1911
1920 1927
1928 1936
and 1939.

21. The following provisions of the Act of 1907 the Act of 1911 the Act of 1920 the Act of 1927 the Act of 1928 the Act of 1936 and the Act of 1939 shall so far as they are applicable for the purpose extend and apply with the necessary modifications to this Act:—

The Act of 1907—

Section 18 (Reservation of water rights &c. on sale);

Section 52 (Informations by whom to be laid);

Section 55 (Application of section 265 of Public Health Act 1875).

The Act of 1911—

Section 12 (Provisions as to compensation)
Provided that in the application of the said section it shall be read and have effect as if the words “the twentieth day of November “nineteen hundred and thirty- “nine” were inserted therein instead of the words “the first “day of January one thousand “nine hundred and eleven”;

Section 15 (Persons under disability may grant easements &c.);

Section 17 (Proceeds of sale of surplus lands);

Section 56 (Saving for indictment &c.).

The Act of 1920—

Section 16 (Temporary stoppage of streets);

Section 133 (Damages and charges to be settled by court).

The Act of 1927—

Section 11 (Power to enter upon property for survey and valuation);

Section 12 (Extinction of private rights of way).

The Act of 1928—

Section 13 (Temporary discharge of water into streams) Provided that in the application of the said section it shall be read and have effect as if the following proviso were added at the end of subsection (1) thereof:—

“ Provided that any water so
“ discharged shall be as free as
“ may be reasonably practic-
“ able from mud or soil or
“ offensive matter and other
“ matter injurious to fish or
“ spawn or spawning beds or
“ food of fish ”;

Section 24 (Acquisition of easements).

The Act of 1936—

Section 7 (Correction of errors in deposited plans and book of reference);

Section 9 (Compensation may be in land &c.);

Section 10 (Purchase of lands for exchange).

The Act of 1939—

Section 21 (Prevention of pollution of water) Provided that in the application of the said section it shall be read and have effect as if the following paragraph were substituted for paragraph (a) of subsection (4) (namely):—

(a) Such powers shall only be exerciseable above the point of abstraction of such waters as far as a point on the river Avon half a mile east of Brandon and Wolston station on the London Midland and Scottish Railway;
and the expression “ the said intake ” in paragraph (b) of the said subsection shall mean the intake (Work No. 1) authorised by this Act;

Section 93 (Application of Arbitration Acts);

Section 96 (Inquiries by Minister);

Section 101 (Crown rights).

Costs of
Act.

22. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the city or out of money to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

COVENTRY CORPORATION ACT 1927.

PART XII.

FREEDOM OF THE CITY.

103. This Part of this Act shall come into operation on the first day of January nineteen hundred and twenty-eight.

Commence-
ment of
Part XII
of this Act.

104. The Act 21 Geo. III chapter 54 and section 130 of the Act of 1920 are hereby repealed but without prejudice to any enrolment admission act or thing which may have been made or done or to any right which may have accrued to any person by virtue of the said Act and section previous to the repeal.

Repeal of
previous
legislation.

105. In this Part of this Act the following expressions shall have the meanings hereby assigned to them :—

Definitions
in Part XII
of this Act.

“ Freedom ” means the freedom of the city ;

“ Deed of apprenticeship ” means a regularly executed and properly stamped indenture or deed of apprenticeship enrolled in the manner and within the period prescribed by this Act and includes an assignment of an indenture or deed of apprenticeship and a new indenture or deed of apprenticeship made in consequence of the termination of the apprenticeship by operation of law or act of the parties ;

“ Trade ” means the trade or profession or combination of trades and professions specified in an enrolled deed of apprenticeship ;

“ Area of service ” means the municipal area for the time being of the city and includes the parishes of the Holy Trinity Without and Saint Michael Without Coventry if they do not form part of the municipal area of the city :

Provided that any period of service to His Majesty rendered during the period of the present emergency in any place or places by a member of the Navy the Army or the Air Force shall (if the

member is an apprentice under a deed of apprenticeship to a trade within the area of service) be treated for the purposes of this Part of this Act as service of whole time apprenticeship under such deed of apprenticeship within the area of service;

“ Day for claiming ” means the first Tuesday in every calendar month unless the first Tuesday falls within the same week as Easter Monday Whitsun Monday or August Bank Holiday in which case “ day for claiming ” shall mean the next ensuing Tuesday;

“ Admission day ” means the last Tuesday in every calendar month unless the last Tuesday falls within the same week as Easter Monday Whitsun Monday or Christmas Day in which case “ admission day ” shall mean the next ensuing Tuesday;

“ The Navy ” means the Royal Navy;

“ The Army ” means His Majesty’s Army;

“ The Air Force ” means the Royal Air Force;

“ The period of the present emergency ” means the period beginning on the twenty-fourth day of August nineteen hundred and thirty-nine and ending on such day as His Majesty may by Order in Council declare to be the day on which the emergency which was the occasion of the passing of the Emergency Powers (Defence) Act 1939 came to an end;

“ The commanding officer ” means the officer commanding the unit of the Navy the Army or the Air Force of which a claimant for admission to the freedom is a serving member at the date of the signature by the claimant of a claim for admission and includes the officer in charge of any hospital hospital ship convalescent home or similar institution or place in which the claimant is residing or serving at the date of the signature by the claimant of a claim for admission.

Qualifica-
tion for
freedom.

106. The qualification for obtaining the freedom shall (subject to compliance with the provisions of this *Part of this Act*) be—

- (a) The service of not less than five years’ whole time apprenticeship under a deed or deeds of apprenticeship to a trade within the area of service;
- (b) The attainment of the age of twenty-one years before admission to the freedom :

Provided that subject to the provisions of the section of this Act of which the marginal note is "Evidence to be produced by claimants" a serving member of the Navy the Army or the Air Force who has at or before the signature of that member's claim completed five years' service of whole time apprenticeship under a deed or deeds of apprenticeship to a trade within the area of service and has attained the age of twenty-one may claim admission to the freedom.

107. Every deed of apprenticeship which in the contemplation of all the parties thereto was entered into with a view to the apprentice qualifying for the freedom shall within six calendar months from the execution of the deed be presented or caused to be presented by the master to the town clerk for enrolment in the apprentices' enrolment book and a fee of one shilling shall be payable by the master in respect of the enrolment.

Enrolment
of deeds of
apprentice-
ship.

108. If the master fails to present or cause to be presented for enrolment such a deed of apprenticeship as is mentioned in the section of this Act of which the marginal note is "Enrolment of deeds of apprenticeship" within six calendar months from the execution of the deed the deed shall at any time after the expiration of the said six calendar months be voidable at the option of the apprentice if he is of age or of his legal guardian or next friend if the apprentice is not of age and if such option is exercised any premium paid to the master in respect of the apprenticeship shall be returned by the master to the person by whom the premium was paid. If the option given by this section is not exercised within a reasonable time after the failure to enrol the deed of apprenticeship comes to the knowledge of the apprentice or his legal guardian or next friend the deed of apprenticeship shall continue to be of full force and virtue.

Failure to
enrol.

109. If it is shown to the satisfaction of the mayor that a person has at any time in good faith served the full term of an apprenticeship which was entered into with a view to securing the freedom but is unable to obtain admission to the freedom because of the non-enrolment of the deed of apprenticeship within six calendar months from the execution of the deed and further (a) that the failure to enrol the deed was due to ignorance or inadvertence or to a cause beyond the control of the person who has served the apprenticeship (b) that in all other material respects the provisions of this Act or of the previous Acts in regard to admission to the freedom have been complied with and (c) that having regard to all the circumstances of the case it

Discretion
to mayor
to dispense
with
enrolment
in special
cases.

would constitute a hardship to debar such person from the freedom then the mayor shall have power upon such person submitting a claim and producing evidence so far as lies in his power of compliance with the requirements of this Act or of the previous Acts in regard to admission to the freedom (except in regard to enrolment of the deed of apprenticeship) to admit such person to the freedom.

Eligibility
of deeds of
apprentice-
ship for
enrolment.

110. The town clerk shall have power to decide as to the eligibility of a deed of apprenticeship for enrolment under this Act but any person aggrieved by a decision of the town clerk shall have a right to appeal to the mayor within seven days thereafter and the decision of the mayor upon the appeal shall be final.

Appren-
tices'
enrolment
book.

111.—(1) The town clerk shall keep an apprentices' enrolment book in which he shall enter in regard to every deed of apprenticeship which he accepts for enrolment the following particulars :—

- (i) The date of execution of the deed;
- (ii) The date of the enrolment;
- (iii) The name of the apprentice;
- (iv) The apprentice's place of abode;
- (v) The name of the master or masters;
- (vi) The master's place of business and if the master is a limited company the registered office of the company;
- (vii) The trade to which the apprentice is to serve;
- (viii) The consecutive number of the enrolled deed.

(2) The apprentices' enrolment book shall be open during business hours to the inspection of the public without fee.

Certificate
of
enrolment.

112. The town clerk shall endorse upon each deed of apprenticeship enrolled by him a certificate of the date of enrolment and the consecutive number of the enrolled deed.

Claims for
admission.

113. Every person seeking admission to the freedom shall deliver to the town clerk a claim in writing containing the following particulars :—

- (i) The claimant's name;
- (ii) His place of abode at the time of the claim;
- (iii) The name of his master or masters;

(iv) The place or places at which the claimant rendered his service under the deed or deeds of apprenticeship;

(v) The trade to which the claimant served;

and shall at the same time deposit with the town clerk the deed or deeds of apprenticeship relating to his service.

114. Subject to the consideration of adjourned claims before new claims as provided by the section of this Act of which the marginal note is " Admission court " claims shall be dealt with in the priority determined by the date of the deeds of apprenticeship and all claims which are delivered to the town clerk up to twelve o'clock noon on the day for claiming in any month shall stand for consideration at the admission court for that month.

Order of
claims.

115. The town clerk shall not later than twelve o'clock noon on the day following the day for claiming cause to be affixed to the notice board of the council house and to the notice board of St. Mary's Hall a list of all claimants whose claims stand for consideration at the admission court for that month and such list shall be signed by the town clerk and shall contain the particulars which the claimants have stated in their claims.

Publication
of list of
claimants.

116.—(1) An admission court shall be held by the mayor on the admission day in each month at such hour as the mayor may determine for the purpose of deciding upon claims for admission to the freedom and the mayor shall have power to adjourn the court from time to time and in case of exceptional circumstances may decide that no admission court shall be held in a particular month At each court the adjourned claims (if any) shall be considered first and then new claims.

Admission
court.

(2) Every admission court shall be open to the public.

117.—(1) Every claimant shall appear at the admission court in person and in order to be entitled to admission shall—

Evidence
to be
produced by
claimants.

(a) Substantiate on oath the statements made in his claim;

(b) Produce a certificate of birth or other satisfactory evidence of his age :

Provided that a serving member of the Navy the Army or the Air Force claiming admission under the proviso to the section of this Act of which the marginal note is " Qualification for freedom " in lieu of appearing in person

at the admission court and complying with paragraphs (a) and (b) of this subsection may in order to be entitled to admission produce to the town clerk—

- (i) a statement in writing signed by the claimant substantiating the statements made in the claim;
- (ii) a certificate of birth or other satisfactory evidence of the claimant's age;
- (iii) a certificate in writing by the commanding officer that the claimant was a serving member of the Navy the Army or the Air Force as the case may be at the date of the signature of the claim by the claimant.

(2) The master or masters to whom the claimant has served shall also appear at the admission court and shall substantiate on oath all statements of the claimant which relate to the service to them. Where the master is a limited company or other corporation such company or corporation may appoint in writing a person to attend the admission court on their behalf and with the permission of the mayor any other master may appoint in writing a person to attend the admission court on his behalf but the mayor may decline to accept the evidence of such a person if he is of opinion that such person cannot testify as to the claimant's service from his own knowledge.

In the case of a claimant who is a serving member of the Navy the Army or the Air Force the town clerk shall submit the statement and certificates referred to in the proviso to subsection (1) of this section to the mayor at the admission court and the mayor shall be entitled to receive the same as sufficient evidence for the purposes of this Act in support of and concerning the facts to be substantiated or proved by the claimant.

(3) The mayor shall have power to admit any other evidence which he may think fit in regard to the claim.

(4) All evidence in the admission court *except evidence by a serving member of the Navy the Army or the Air Force* shall be given on oath and the mayor is hereby authorised to administer oaths for that purpose.

(5) The decision of the mayor upon each claim shall be final.

Procedure
on
admission.

118. Every person *entitled* whom the mayor decides to admit to the freedom shall take before the mayor the customary oath of a freeman of Coventry and shall pay an admission fee of three shillings whereupon he shall be

admitted to the freedom and shall be entitled to all the rights liberties franchises and privileges of a freeman of Coventry :

Provided that during the period of the present emergency the mayor shall be entitled to admit to the freedom without the taking of the customary oath or the payment of any admission fee any person who is a serving member of the Navy the Army or the Air Force and who has complied with the provisions of this Part of this Act and from the date when the mayor admits any such person to the freedom that person shall be entitled to all the rights liberties franchises and privileges of a freeman of Coventry A person admitted to the freedom under this proviso may attend at any subsequent admission court for the purpose of taking before the mayor the customary oath of a freeman of Coventry.

118A. Any apprentice under a deed of apprenticeship to a trade within the area of service who during the period of the present emergency serves as a member of the Navy the Army or the Air Force but who is unable before the termination of the said period to submit a claim for admission under the section of this Act of which the marginal note is " Claims for admission " may submit a claim for admission at any time thereafter and the claimant's period of service to His Majesty rendered during the period of the present emergency in any place or places as a member of the Navy the Army or the Air Force shall be treated for the purposes of this Part of this Act as service of whole time apprenticeship under the deed of apprenticeship to a trade within the area of service and the date of the apprentice's admission shall be deemed to be the date upon which the apprentice would have been admitted to the freedom if the claim for admission had been made and the decision thereon had been given as soon as the apprentice had attained twenty-one years of age.

As to claims which cannot be submitted in due time.

119.—(1) The town clerk shall keep a freemen's admission book and shall in respect of every admission court enter therein—

Freemen's admission book.

- (a) In regard to every claimant the name place of abode and trade of the claimant;
- (b) In regard to every person admitted as a freeman the date of the deed or deeds of apprenticeship and the particulars which are specified in the section of this Act of which the marginal note is " Claims for admission " as necessary for the claimant to state in his claim;

and the town clerk shall subscribe his name to the particulars stated in paragraph (a) and the mayor shall subscribe his name to the particulars stated in paragraph (b) of this subsection.

(2) The freemen's admission book shall be open during business hours to the inspection of the public without fee.

Evidence
of contents
of freemen's
admission
book.

120.—(1) A copy of an entry in the freemen's admission book signed by the town clerk shall be conclusive evidence of the admission of any person to the freedom.

(2) The town clerk shall be authorised to charge a fee of one shilling for each certified copy of an entry from the freemen's admission book.

Publication
of list of
persons
admitted.

121. The town clerk shall not later than twelve o'clock noon on the day following an admission court cause to be affixed to the notice board of the council house and to the notice board of St. Mary's Hall a list of all the persons who were admitted to the freedom at that court and shall sign such list and state therein the particulars which are herein prescribed for entry in the freemen's admission book *The town clerk shall indicate separately in the said list serving members of the Army the Navy and the Air Force.*

Public
notice to
be given of
Part XII
of this Act.

122. Public notice of the provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the City and by a notice affixed outside the council house and to the notice board of St. Mary's Hall.

Printed by PERCY LUND, HUMPHRIES & Co., LTD.

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., Controller of His Majesty's Stationery Office
and King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 9d. net